

**RECORD OF PROCEEDINGS FOR THE GOVERNING BODY
OF THE CITY OF CHEYENNE**
Office of City Clerk

May 10, 2010

The Governing Body of the City of Cheyenne met in regular session on this date beginning at 6:00 p.m. in Council Chambers. Present were: MAYOR - Richard L. Kaysen; COUNCIL MEMBERS: Ms. Ash, Mr. Brown, Ms. Broyles, Ms. Case, Mr. Collins, Mr. Pierson, Dr. Rinne, Mr. Spiker and Mr. Valdez. Also present: Carol Intlekofer, City Clerk; Barb Dorr, City Treasurer, and Dan White, City Attorney. The pledge of allegiance was recited.

RECOGNITION OF FIRE AND RESCUE CHIEF GUY E. CAMERON ON HIS RETIREMENT. City Clerk Carol Intlekofer read a Mayoral proclamation into the record recognizing Chief Cameron for his years of service to the residents of Cheyenne and proclaiming May 19, 2010 Guy E. Cameron Day. Mayor Kaysen presented Chief Cameron with the proclamation, a plaque of appreciation for his 32 years of dedicated service to the City and a 100 year anniversary Fire Department commemorative medallion. Appreciation was expressed by Mayor Kaysen and members of the governing body on the Chief's achievements benefitting the department and community. Chief Cameron commented on his positive employment experience with the City, and expressed appreciation to past and present mayors and members of the governing body for their trust and confidence in him and also to co-staff with whom he has worked over the years.

Consent Agenda. (All agenda items listed with the designation of [CA] are considered to be routine items by the governing body and will be enacted by one motion. There will be no separate discussion on these items unless a member of the governing body so requests and support by two other members is received. Any item removed from the Consent Agenda will be considered in its normal sequence on the agenda.) Mr. Pierson moved to approve Consent Agenda items, seconded by Mr. Spiker. Motion carried. Voting "yes" – all members of the governing body.

[CA] Minutes from Regular Meeting of the Governing Body on April 26, 2010. Motion (per Consent Agenda) carried.

[CA] Minutes from Vouchers Meeting of the Governing Body on May 3, 2010. Motion (per Consent Agenda) carried.

Mr. Valdez moved to approve payment of vouchers as presented, seconded by Ms. Broyles. Mr. Brown declared a conflict of interest (business interest) due to a voucher payable to Ameri-Tech HVAC Services, and vacated Council Chambers. Upon inquiry regarding a voucher payable to Union Pacific Railroad (\$5,561.57 for flagging costs), Doug Vetter, City Engineer, explained the majority of flagging expenses should be completed relative to the Norris Viaduct project. Motion carried. Voting "yes" – all members of the governing body present in Council Chambers. Following announcement of the vote, Mr. Brown returned to Council Chambers.

Mayor Kaysen opened a public hearing for the purpose of receiving comments and input to

determine whether compliance of annexation conditions required by Wyo. Stat § 15-1-402 exists for a parcel of land being situated in a portion of Tracts 7 and 10, Dell Range Addition 2nd Filing; Lot 3, Smithson View, together with a portion of Carla Drive, Thomas Road and College Drive, Laramie County, Wyoming (generally located north of and adjacent to Carla Drive, between Ridge Road and College Drive). Don Threewitt, Urban Planning, reviewed requirements and compliance of conditions contained in Wyo. Stat. §15-1-402, including specific information indicating compliance with Wyo. Stat. §15-1-402(a)(i) through (vi). Robin Huber questioned whether a development proposal had been submitted, and requested the name of the developer. Mr. Threewitt clarified a development plan had not yet been submitted, and provided the names of the developers, who are the property owners. Mayor Kaysen advised any questions involving the property to be annexed could be communicated to Mr. Threewitt. There being no further comments or input and purpose of the hearing having been met, Mayor Kaysen closed the hearing.

“An Ordinance amending Title 17, Zoning, Chapter 17.08, Zoning Districts Established and Section 17.08.040 Cheyenne City map of the Cheyenne City Code, by changing the zoning classification from PUD Planned Unit Development District to MR-2 Medium Density Residential-Developing District for Lots 1 through 14 inclusive of Dry Creek Twin Homes Subdivision, Cheyenne, Wyoming, to be known as a portion of Woodhaven Subdivision (located west of College Drive, between the Dry Creek Channel and McCann Avenue).” Due to any perception of conflict involving distant family ties with the developer, Mr. Spiker declared a conflict of interest and vacated Council Chambers. Reporting for Public Services Committee, Ms. Ash moved to approve on third and final reading, seconded by Mr. Collins. Ms. Ash moved to amend by substitute, seconded by Mr. Collins. It was noted, pursuant to discussion and amendments recommended by the Public Services Committee, the substitute includes the addition of the word “conditional” in the ordinance entitlement and in Section 1.; inserts a new section which reads as follows: *“That the zone change was conditioned by the Governing Body to allow only those uses by right and uses by administrative approval. No other uses shall be allowed by Board Approval. All other requirements for the MR-2 Medium Density Residential-Developing District will remain as outlined in Section 17.48 of the Cheyenne City Code.”*, and includes the following staff recommendation: *“A condition be placed on the approval of the zone change that the applicant record a “Notice of Conditional Zone” to provide public notification of specific restriction to prospective buyers”*. It was further noted the intent of the changes is to protect the neighborhood by providing that any development of apartment buildings/complexes would require the consent of the governing body. Motion to amend carried. Voting “yes” – all members of the governing body present in Council Chambers. Main motion as amended by substitute carried. Voting “yes” – all members of the governing body present in Council Chambers. Following announcement of the vote, Mr. Spiker returned to Council Chambers. (#3890)

“An Ordinance amending Title 17, Zoning, Chapter 17.08, Zoning Districts Established and Section 17.08.040 Cheyenne City map of the Cheyenne City Code, by changing the zoning classification from MR-1 Medium Density Residential-Established District to MUB Mixed Use with Business Emphasis District for Lots 1 and 2; and the north 66-feet of Lots 3 and 4, Block 195, Original City, Cheyenne, Wyoming (located at the southwest corner of the intersection of E. 23rd Street and Russell Avenue).” Ms. Ash moved to approve on third and final reading, seconded by Mr. Collins. Ms. Ash moved to amend by substitute, seconded by Mr. Collins. It was noted, pursuant to discussion and amendments recommended by the Public Services Committee, the substitute includes the addition of the word “conditional” in the ordinance entitlement and in Section 1.; inserts a new section which reads as follows: *“That the zone change was conditioned by the Governing Body as follows: The uses by right shall be limited to #1. Funeral home and related*

services within the existing building or #2. Church and related services within the existing building, no other uses shall be allowed by Administrative or Board Approval. All other requirements for the MUB Mixed Use with Business Emphasis District will remain as outlined in Chapter 17.88 of the Cheyenne City Code.”, and includes following staff recommendation: “*A condition be placed on the approval of the zone change that the applicant record a “Notice of Conditional Zone” to provide public notification of specific restriction to prospective buyers.*” Upon inquiry, Lisa Pafford, Assistant Development Director, clarified related (funeral) services would include offices related to the funeral business, and services provided for an actual funeral and viewing areas. She also advised a crematorium use would not be allowed in this type of zoning district, and to change the use to include other services would require re-zoning. Comments followed on the historical nature of the neighborhood; support received from neighbors concerning the proposed use of the property, limiting use of the site, and request for postponement received from the applicant’s agent. Motion to amend carried. Voting “yes” – all members of the governing body. Ms. Ash moved to postpone for two weeks (to May 24, 2010), seconded by Mr. Collins. John Steil, Steil Surveying Services, agent for applicant, advised the proposed purchaser of the property has inquired about adding a garage onto the existing building to house funeral service vehicles and with the current language this would not be allowed. He noted support for postponement, suggesting the governing body could consider amending the wording at the current meeting and move forward with approval of the ordinance. Motion to postpone carried. Voting “yes” – all members of the governing body.

“An Ordinance appropriating moneys for the City of Cheyenne, Wyoming for the various purposes in conducting the municipal government of said city and fixing the amount of general and special taxes as part of the revenue required to meet the said appropriation, all for the fiscal year beginning July 1, 2010, and ending June 30, 2011” -- referred to Finance Committee (sponsor - Ms. Broyles).

“An Ordinance approving and establishing revised water rates, as recommended by the Board of Public Utilities to be effective January 1, 2011” – referred to Finance Committee (sponsor - Mr. Brown).

“An Ordinance approving and establishing revised sewer rates, as recommended by the Board of Public Utilities to be effective January 1, 2011” – referred to Finance Committee (sponsor - Mr. Brown).

“An Ordinance approving and establishing revised tap fees, system development fees, pump station fees and other related fees recommended by the Board of Public Utilities to be effective January 1, 2011” -- referred to Finance Committee (sponsor - Mr. Brown).

“An Ordinance approving and establishing revised administrative fees, service charges and penalties as recommended by the Board of Public Utilities to be effective January 1, 2011” -- referred to Finance Committee (sponsor - Mr. Brown).

“An Ordinance approving and establishing revised septic waste dump rates and commercial waste rates recommended by the Board of Public Utilities to be effective January 1, 2011” -- referred to Finance Committee (sponsor - Mr. Brown).

[CA] “A Resolution adopting the City of Cheyenne Comprehensive Consolidated Plan 2010-2014, which has been prepared by the Cheyenne Housing and Community Development Office”. Motion (per Consent Agenda) carried. (#5209)

[CA] “A Resolution supporting providing funds from the City’s Optional One Percent Sales Tax Infrastructure Development Fund for the purpose of extending infrastructure required to provide non-stop jet service between Cheyenne, Wyoming, and Dallas, Texas, on American Airlines” (2007 - 2010 1% Sales Tax). Motion (per Consent Agenda) carried (not to exceed \$200,000.00). (#5210)

[CA] “A Resolution authorizing the Mayor and the City Clerk to sign a Final Plat for Crow Creek Water Reclamation Subdivision, situated in a portion of the SE¼ of Section 3, T.13N., R.66W., 6th P.M., Cheyenne, Wyoming (located south of S. Industrial Road, east of S. College Drive)” -- referred to Public Services Committee (sponsor - Ms. Ash).

[CA] Preliminary Plat for The Bluffs Subdivision, 8th Filing, situated in a portion of the SW¼ NW¼ of Section 21, T.14N., R.66W., 6th P.M., Cheyenne, Wyoming (located east of and adjacent to Ogden Road, between Apache Street and Plain View Road) -- referred to Public Services Committee.

[CA] County Preliminary Plat for Deerhaven Subdivision, a replat of Tract 6 and a portion of Tract 7, Allison Tracts; Tract 2, Hermann Meadows Subdivision; Lot 2 and a portion of Lot 1, Block 1, Ley Subdivision, Laramie County, Wyoming (located between E. Fox Farm and E. Jefferson Roads, east of S. Greeley Highway) -- referred to Public Services Committee.

[CA] Agreement between the City of Cheyenne and the Boys and Girls Club of Cheyenne, Inc., to lease the building located at 1700 Snyder Avenue, Cheyenne, WY. Motion (per Consent Agenda) carried. (Revenue to the City \$12.00/annually) (#5548)

[CA] Agreement between the City of Cheyenne and the Cheyenne Symphony Orchestra for use of the Civic Center for the 2010-2011 Concert Season -- referred to Finance Committee.

[CA] Agreement between the City of Cheyenne and the Cheyenne Symphony Orchestra for use of the Civic Center for the Youth Education Concerts -- referred to Finance Committee.

[CA] Contract between the City of Cheyenne and Delta Dental of WY for dental coverage for full time city employees -- referred to Finance Committee.

[CA] Authorization for the Mayor to sign State Historic Preservation Office (SHPO) Certified Local Government grant award # 56-10-00000.03 in the amount of \$16,680.00 for Class II Cultural Resource Survey of the Belvoir Ranch property -- referred to Finance Committee.

[CA] Amendment #1 to Contract #5327, Transmission Easement License Agreement, between the City of Cheyenne and Silver Sage Windpower, LLC for transmission of electricity across a certain portion of the City's Happy Jack Landfill property. Motion (per Consent Agenda) carried. (#5327)

[CA] Consideration of Bid #M-15-10 for a contract between the City of Cheyenne and JTL Group, Inc., d/b/a Knife River of Cheyenne, WY, for the FY 2010 City Overlay project -- referred to Finance Committee.

[CA] Designation of Official Voting Delegate and Alternate Delegate for the City of Cheyenne at the 2010 Wyoming Association of Municipalities convention -- referred to Public Services Committee.

Announcement was made of a public hearing to be held May 24, 2010 at 6:00 p.m. in City Council Chambers, 2101 O'Neil Avenue, Cheyenne, WY, for the purpose of receiving public comments on the proposed vacation of dedicated public right-of-way of Civitan Place between Cribbon Ave. and Dey Ave., the dedicated alley located in Civitan Park between West Leisher Road and Civitan Place, and the dedicated public park known as Civitan Park, in Arp Addition, 5th Filing, generally located south of West Leisher Road between Cribbon Ave. and Dey Ave., consisting of approximately 54,325.3 sq. ft., for the intended purpose of making the property available for public school or public educational purposes.

There being no further business to come before the governing body, the meeting was officially adjourned at 6:37 p.m.

Submitted by,

Carol Intlekofer, MMC
City Clerk

This notice is available in alternative, accessible formats upon request.

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